

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to meet and confer, Plaintiff mailed Defendant meet and confer correspondence on April 24, 2024.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of March 24, 2025.

JPMORGAN CHASE BANK, N.A. VS. STENE

Case Number: 24CVG-00317

Tentative Ruling on Motion for Order that Matters in Request for Admission of Truth of Facts Deemed be Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Requests for Admission, Set One. Despite being timely served, Defendant Andy L Stene did not file an Opposition.

When a party fails to respond to a Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame.

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The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of May 12, 2025.

MCCOLM VS. SHAW, DDS, ET AL.

Case Number: 24CV-0204406

Tentative Ruling on Motion for Order Quashing Subpoena Duces Tecum: Plaintiff Patricia McColm moves to quash subpoenas issued to UCSF School of Dentistry by Defendants Daniel Shaw, D.D.S. and Dana Park Dental. The motion is opposed by Defendants.

A Reply was filed by Plaintiff on October 31, 2024. The Reply should have been filed and served no later than

October 28, 2024. CCP § 1005(b). When the Reply was filed, the Court had already reviewed the matter and drafted the tentative ruling for this matter. Although the Court could refuse to consider the Reply given the late filing, the Court is exercising its discretion to consider the late Reply on the merits. All objections, whether properly or improperly made, in the Reply are overruled. The tentative ruling originally drafted by the Court remains unchanged and is as follows:

Defendant issued a Deposition Subpoena to USCF School of Dentistry on August 20, 2024 for production of records on September 6, 2024. The parties met and conferred regarding the subpoena and Defendants agreed to remove the word “medical” from the subpoena but did not agree with the balance of the issues raised by Plaintiff. Defendants then issued a second Deposition Subpoena on September 5, 2024 for production of records on October 2, 2024. Based on the second subpoena, the August 5, 2024 subpoena is considered withdrawn and the only subpoena at issue is the subpoena issued on September 5, 2024.

Plaintiff raises procedural and substantive issues. As for the procedural issues, Plaintiff argues that because she is a self-represented litigant and Plaintiff’s records are sought, Plaintiff must be personally served with the subpoena. Plaintiff cites Civil Procedure Before Trial, section 8.590 for this argument. Section 8.590 reads:

How served: If the “consumer” is already a party to the action, service may be made upon his or her attorney of record. [CCP § 1985.3(b)(1)] (For parties in pro per, see CCP § 1011(b).)

Otherwise, the documents must be served on the “consumer” either:

- personally;
- “or at his or her last known address,” suggesting they can be left with someone else [but the matter is unclear];
- “or in accordance with [CCP § 1010 et seq.],” which includes service by mail (CCP § 1012). [CCP § 1985.3(b)(1) (emphasis added)]

(Special rules apply where the “consumer” is a minor; see CCP § 1985.3(b)(1).)

The Rutter Group California Practice Guide: Civil Procedure Before Trial, § 8.590

Plaintiff failed to include any text after “personally.” While The Rutter Guide is instructive, the law is found in the Code of Civil Procedure.

Prior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve or cause to be served on the consumer whose records are being sought a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena, if any, and of the notice described in subdivision (e), and proof of service as indicated in paragraph (1) of subdivision (c). This service shall be made as follows:

(1) To the consumer personally, or at his or her last known address, or in accordance with Chapter 5 (commencing with Section 1010) of Title 14 of Part 3, or, if he or she is a party, to his or her attorney of record. If the consumer is a minor, service shall be made on the minor’s parent, guardian, conservator, or similar fiduciary, or if one of them cannot be located with reasonable diligence, then service shall be made on any person having the care or control of the minor or with whom the minor resides or by whom the minor is employed, and on the minor if the minor is at least 12 years of age.

(2) Not less than 10 days prior to the date for production specified in the subpoena duces tecum, plus the additional time provided by Section 1013 if service is by mail.

(3) At least five days prior to service upon the custodian of the records, plus the additional time provided by Section 1013 if service is by mail.

CCP § 1985.3(b).

CCP §§ 1012 and 1013, both of which are in Chapter 5, describe service by mail. Defendants' service of the subpoenas by mail was appropriate.

As to the content of the subpoena, Defendants the main issues appear to be whether the subpoena should be limited as to time. Defendants have presented a declaration by Mark A. Crane, D.D.S., M.D. who has been a licensed dentist since 1992. Dr. Crane also has a medical degree and an Oral & Maxillofacial Surgery Certificate and is Board certified in maxillofacial surgery. Dr. Crane opines that based on the allegations made by Plaintiff in the Complaint, Plaintiff's full dental history is relevant as TMJ symptoms are frequently caused by long-standing, chronic, degenerative conditions and Plaintiff claims she suffered injury to her temporomandibular joints (TMJ). Dr. Crane further opines that because Plaintiff is 78 years old, the full dental records are more important to obtain.

Plaintiff makes a number of other objections including but not limited to overly broad, vague, ambiguous, unjustly burdensome, oppressive, unintelligible, not reasonably calculated to lead to discovery of admissible evidence, and lack of good cause. The Court has reviewed Attachment 3 to the subpoena issued on September 5, 2024 and overrules each objection. The records sought are specifically and clearly listed and appear to be relevant to the case. There is no indication that UCSF producing such records will burden Plaintiff in any way. There is good cause for the records sought.

The Motion for Order Quashing Subpoena Duces Tecum is **DENIED**. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

MORENO VS. RIDDLE, ET AL.

Case Number: 24CV-0204521

Tentative Ruling on Motion to Further Responses to Special Interrogatory No. 24: Defendants Barbara Jean Riddle and Carol Ann Lowe request that Plaintiff Nekelish Dawn Moreno be compelled to provide a further response to Special Interrogatory No. 24. Plaintiff opposes the motion.

Meet and Confer. Defendants were required to meet and confer with Plaintiff prior to filing the motion. Defendants have provided evidence of good faith meet and confer efforts.

Merits. "Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." CCP § 2017.010.

Special Interrogatory No. 24 reads:

If your answer to the proceeding interrogatory is yes, for each such cell phone, please state the phone number (including area code), the cell phone provider and the name under which the cell phone is registered, and the name of the person/entity who contracted with the provider for the cell phone service.

Special Interrogatory No. 23 reads "At the time of the SUBJECT INCIDENT, did you have in your possession any cell phone?" Plaintiff made objected and responded, "Yes." to No. 23. Plaintiff's response to No. 24 is "Objection. This interrogatory is irrelevant and not reasonably likely to lead the discovery of admissible evidence. In addition, this interrogatory invades Plaintiff's constitutional right to privacy, and is overbroad, burdensome, and oppressive."